

/s/ LESLIE T. KOBATA, Registrar
KEO 5

LAND COURT SYSTEM

REGULAR SYSTEM

AFTER RECORDATION, RETURN BY: MAIL ☒ PICK-UP ☐:

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TMK No. (2) 1-1-7:101

Total pages: 5

**AMENDMENT TO THE BY-LAWS OF THE ASSOCIATION OF APARTMENT
OWNERS OF NA HALE O MAKENA**

This AMENDMENT TO THE BY-LAWS OF THE ASSOCIATION OF APARTMENT OWNERS OF NA HALE O MAKENA ("Amendment") is made by the ASSOCIATION OF APARTMENT OWNERS OF NA HALE O MAKENA, a Hawai'i nonprofit corporation.

WHEREAS, Makena Estates L.L.C., as developer of the condominium project known as Na Hale O Makena (the "Project") filed a Declaration of Condominium Property Regime of Na Hale O Makena at the Bureau of Conveyances of the State of Hawaii ("Bureau") as Document No. 2000-166795 dated November 20, 2000 ("Declaration"), together with Condominium Map No. 3192;

WHEREAS, the By-Laws of the Association of Apartment Owners of Na Hale O Makena were filed in the Bureau as Document No. 2000-166796 dated November 20, 2000 ("Bylaws");

WHEREAS, the Bylaws were amended by instrument recorded in the Bureau as Document No. 2001-096485 on June 26, 2001;

WHEREAS, Section 514B-109(b), Hawaii Revised Statutes, provides that an association of unit owners may at any time restate the bylaws of the association to amend the bylaws as may be required in order to conform with the provisions of Chapter 514B, Hawaii Revised Statutes, or any other statute, ordinance, rule, or regulation enacted by any governmental authority, by resolution adopted by the board of directors, and the restated bylaws shall be as fully effective for all purposes as if adopted by the vote or written consent of the unit owners;

WHEREAS, the Board of Directors of the Association by adoption of a resolution at a duly noticed meeting held on 10/28/2019 voted to amend the Bylaws to conform to the law, specifically Hawai'i Revised Statutes ("HRS"), Chapter 515, Hawai'i Administrative Rules ("HAR") Section 12-46-306, and the federal Fair Housing Act;

NOW, THEREFORE, BE IT RESOLVED THAT Article X, Section 10.7 of the Bylaws are hereby amended as follows:

(a) No livestock, poultry, rabbits or other animals whatsoever shall be allowed or kept in any part of the Project, except for fish and other aquarium animals and as provided herein.

(b) Notwithstanding the provisions of Section 10.7(a), service animals or assistance animals upon which disabled Owners or Occupants depend for assistance shall be permitted to be kept by such Owners or Occupants in their Apartments and shall be allowed to walk throughout the common areas while under control of its handler. If such animal causes a nuisance or unreasonable disturbance or poses a threat to the health or safety of any Owner, Occupant or guest, the owner thereof will be given an opportunity to rectify the problem by measures which fall short of ejection of the animal from the condominium. Ejection will be required only if the Board reasonably determines that less drastic alternatives have been unsuccessful. If such an animal is ejected, it will nonetheless be allowed to remain at the Project for a reasonable period of time while the owner thereof attempts to find a suitable replacement animal, provided that the problem is controlled to a sufficient degree that the continued presence of the animal during that time does not constitute an unreasonable imposition upon, or threat to the safety or health of, other Owners, Occupants or guests.

(c) In no event shall the Board, the Association, the managing agent or resident manager be or be deemed to be liable for any loss, damage or injury to persons or property caused by or arising in connection with any Owner's or Occupant's animal. By acquiring an interest in an Apartment, each Occupant agrees to indemnify, defend and hold harmless the Board, the Association, the managing agent and the resident manager against any claim or action at law or in equity arising out of or in any way relating to such Owner's or Occupant's animal.

The portion has been restated solely for purposes of information and convenience and amended to implement ("HRS") Chapter 515, HAR Section 12-46-306, and the federal Fair Housing Act. To the extent that there is any conflict between the amended provisions of the Bylaws and the statute, ordinance, or rule enacted by any governmental authority being implemented, the provisions of the Bylaws shall be subordinate to said statute, ordinance, or rule enacted by any governmental authority. This amended Bylaws shall supersede the original Bylaws, and all prior amendments and restatements thereto.

In all other respects, the Bylaws, as amended, are hereby ratified and confirmed and shall be binding upon and inure to the benefit of the parties to them and their respective successors and permitted assigns.

Each of the undersigned officers of the Association hereby warrants and represents that he or she is legally authorized to sign this Amendment on behalf of the Association. The undersigned officers of the Association hereby certify that the amendment to the Bylaws was adopted by resolution of the Board of Directors.

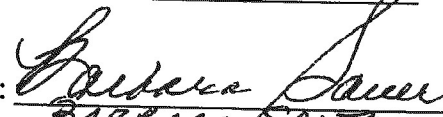
The officers of the Association agree that this Amendment may be executed in counterparts, each of which shall be deemed an original, and said counterparts shall together constitute one and the same instrument, binding the parties thereto, notwithstanding that all the parties are not signatories to the original or the same counterpart. For all purposes, including without limitation, recordation, filing and delivery of this Amendment, duplicate, unexecuted and unacknowledged pages of the counterparts may be discarded and the remaining pages assembled as one document.

IN WITNESS HEREOF, the parties hereto have executed these presents this 30th day of OCTOBER, 2019.

ASSOCIATION OF APARTMENT OWNERS OF
NA HALE O MAKENA

By: 
RICHARD FORTUNA

Its PRESIDENT AOA

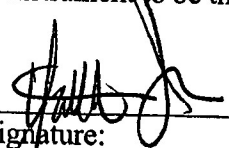
By: 
BARBARA SALEN

Its SECRETARY AOA

STATE OF HAWAII
COUNTY OF MAUI

)
) ss.
)

On OCTOBER 30, 2019 before me personally appeared RICHARD FORTUNA, to me personally known, who, being by me duly sworn, did say that HE is the OWNER/PRESIDENT of Association of Apartment Owners of Na Hale O Makena and the said instrument was signed on behalf of said association by authority of its board of directors, and said officer acknowledged said instrument to be the free act and deed of said association. Said association has no seal.


Signature:

YATTA JOHNSON
Print Name:

Notary Public, State of HAWAII

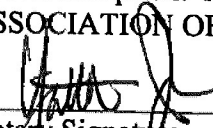
My commission expires: 6/30/2021

10/28/19 - MEETING DATE

Doc. Date: 10/30/19 - SIGNED # Pages: 3

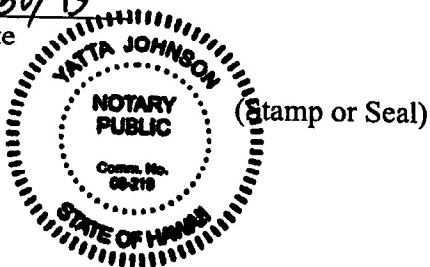
Notary Name: YATTA JOHNSON 2NP Circuit

Doc. Description: AMENDMENT TO THE BY-LAWS OF THE
ASSOCIATION OF APARTMENT OWNERS OF NA HALE O MAKENA


Notary Signature

10/30/19
Date

NOTARY CERTIFICATION



STATE OF HAWAII)
) ss.
COUNTY OF MAUI)

On OCTOBER 30, 2019 before me personally appeared BARBARA SAUER, to me personally known, who, being by me duly sworn, did say that SHE is the SECRETARY/OWNER of Association of Apartment Owners of Na Hale O Makena and the said instrument was signed on behalf of said association by authority of its board of directors, and said officer acknowledged said instrument to be the free act and deed of said association. Said association has no seal.

Signature: [Signature]

YATTA JOHNSON

Print Name:

Notary Public, State of HAWAII

My commission expires: 6/30/2021

Doc. Date: 10/28/19

Pages: 3

Notary Name: YATTA JOHNSON 2ND Circuit

Doc. Description: AMENDMENT TO THE BY-LAWS OF THE
ASSOCIATION OF APARTMENT OWNERS OF NA HALE O MAKENA

Notary Signature [Signature]

10/30/19
Date

NOTARY CERTIFICATION

